Could the Popular Vote Pick the Next President?

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The midterm elections changed more than who holds office. They may also change how Americans pick a president.

Right now, candidates win the White House by collecting **Electoral College** votes state by state, which makes them focus on a handful of **swing states**. But a deal called the National Popular Vote Interstate **Compact** could change that. Under the deal, states that join agree to give their **Electoral College** votes to whichever candidate wins the most votes nationwide. Eighteen Democratic-run states have already joined, accounting for 222 **Electoral College** votes. Once the states in the deal add up to 270 the number needed to win the presidency the arrangement would effectively require a candidate to win the national popular vote.

The recent elections opened the door wider. Democrats won full control in six states worth 71 **Electoral College** votes: Arizona, Michigan, Minnesota, Nevada, Pennsylvania, and Wisconsin. Minnesota, with 10 electoral votes, had already joined the **compact** in 2023, when it was previously under full Democratic control.

Supporters are hopeful. Wisconsin's new Democratic governor, David Crowley, said of the **Electoral College**, 'We can do away with it,' and added that he is interested in talking with the state legislature. Pennsylvania Governor Josh Shapiro, a likely 2028 contender for the Democratic presidential nomination, said over the weekend that he would like his newly Democratic legislature to take steps toward making the **Electoral College obsolete**. 'I think that the national popular vote makes sense. My views on that have not changed,' Shapiro said.

Still, it is not clear that all the newly elected lawmakers and governors support the plan. If Pennsylvania and Wisconsin joined, reaching 270 would still require Michigan and either Arizona or Nevada. The office of Michigan's new Democratic governor, Jocelyn Benson, said it would not comment. Arizona Governor Katie Hobbs declined to say whether she favored joining, saying she is focused on other issues, like the cost of living. Tai Sims, a spokesman for Nevada's incoming Democratic governor, Aaron Ford, said, 'There will be a time to talk about presidential elections, but right now Ford's focus is lowering costs for working families.'

Nevada is also a cautionary tale. In 2019, then-Democratic Governor Steve Sisolak **vetoed** a measure to join the **compact**, saying the popular vote idea would weaken the influence of smaller-population states like Nevada. Democrats passed another measure in 2023, but could not get around the state's then-Republican governor.

Republicans plan to push back. 'Our Constitution gives states a voice in choosing the president for a reason,' Tyler August, the Republican leader in the Wisconsin Assembly, said in a statement. 'This would undermine that balance and **disenfranchise** Wisconsin voters by letting results in other states override their choice.' Legal challenges from conservative groups are almost certain, and the plan could land before the conservative-majority Supreme Court.

The idea gained traction among Democrats after Republican George W. Bush won the 2000 election by edging ahead of Democrat Al Gore in the **Electoral College** while losing the

popular vote. It picked up speed again after Donald Trump won the White House the same way in 2016 over Democrat Hillary Clinton. But Patrick Rosenstiel, a Republican strategist in Minnesota and a senior consultant to the popular vote movement, said there is nothing inherently partisan about the idea. Republican-majority chambers, including the Oklahoma Senate, have passed proposals to join the **compact**, though the bills went no further.

Word Treasure

Electoral College -- The Electoral College is the group of votes each state gives to pick the president.

compact -- A compact is a formal agreement between states.

swing states -- Swing states are states where either side could win, so candidates spend lots of time there.

disenfranchise -- To disenfranchise voters means to take away their power to have their vote count.

obsolete -- Obsolete means no longer used or needed.

vetoed -- When a governor vetoes a measure, they refuse to sign it so it does not become law.

Background you need

In the United States, the president is not picked directly by the total number of votes across the country. Instead, each state has a number of Electoral College votes, and the candidate who wins enough of those votes becomes president.

Because of this system, candidates spend most of their time in a few swing states where the result is close, while states that almost always vote one way get less attention.

The National Popular Vote Interstate Compact is a deal between states to give all of their Electoral College votes to the candidate who wins the most votes nationwide, which would only take effect once enough states join to reach 270 votes.

The idea has become more popular with Democrats after two recent elections in which the winner of the Electoral College lost the national popular vote, but it would face legal challenges and pushback from people who say it would weaken the voice of smaller states.

Break it down

LEAD: The midterm elections may change how Americans pick a president, through a deal called the National Popular Vote Interstate Compact.

KEY EVENT: Democrats won full control in six states, opening the door for more states to join the compact.

+- WHO: Democratic governors and lawmakers in Arizona, Michigan, Minnesota, Nevada, Pennsylvania, and Wisconsin

+- WHAT: Joining the compact would mean giving a state's Electoral College votes to the national popular vote winner

+- WHEN: After the recent midterm elections; Minnesota joined in 2023

NUMBERS: States in the compact hold 222 Electoral College votes; 270 are needed for it to take effect.

SUPPORT: Wisconsin Governor David Crowley and Pennsylvania Governor Josh Shapiro back the idea.

PUSHBACK: Republicans say it would weaken states' voices; legal challenges are almost certain and the plan could reach the Supreme Court.

OPEN QUESTION: Will enough states, including Michigan and either Arizona or Nevada, join to reach 270?

Why it matters

How the president is chosen shapes which voters candidates listen to, so changing the rules could change whose voices matter most in every election.

Test what you remember

1. What does the National Popular Vote Interstate Compact ask states to do?

(A) Give all their votes to the governor's party
(B) Abolish voting in swing states
(C) Give their Electoral College votes to the national popular vote winner
(D) Let each state pick its own president

2. How many Electoral College votes do the states that have joined the compact hold?

(A) 270
(B) 222
(C) 10
(D) 71

3. Which six states did Democrats win full control of in the recent elections?

(A) Arizona, Michigan, Minnesota, Nevada, Pennsylvania, and Ohio
(B) Arizona, Michigan, Minnesota, Nevada, Pennsylvania, and Wisconsin
(C) Texas, Florida, Ohio, Georgia, North Carolina, and Virginia
(D) California, New York, Illinois, Oregon, Washington, and Massachusetts

4. What did Wisconsin's new governor, David Crowley, say about the Electoral College?

(A) 'The plan is unconstitutional'
(B) 'It should never change'
(C) 'Smaller states need more votes'
(D) 'We can do away with it'

5. Why did Nevada's Governor Steve Sisolak veto joining the compact in 2019?

(A) He wanted Nevada to leave the compact it had joined
(B) He wanted the Supreme Court to decide first
(C) He said the compact would help only large states win
(D) He said it would weaken the influence of smaller-population states like Nevada

6. What is almost certain to happen if the compact moves forward?

(A) Congress will pass it unanimously
(B) Every state will join within a year
(C) Legal challenges from conservative groups
(D) The Supreme Court will ban all state compacts

Answer key (try the quiz first!): 1: C 2: B 3: B 4: D 5: D 6: C

Questions to think about

1. Supporters of the compact: Say the national popular vote makes sense and the Electoral College can be done away with.

2. Republican critics: Say the plan would undermine the balance between states and let results in other states override Wisconsin voters' choice.

3. Cautious Democratic governors: Some, like Arizona's Katie Hobbs and Nevada's incoming governor Aaron Ford, decline to commit and say they are focused on the cost of living.

4. Patrick Rosenstiel, a Republican strategist: Says there is nothing inherently partisan about the idea.

MY THOUGHTS (at least 20 words):